Topic: Politics of New Provinces in Pakistan: A Historical Analysis

This research paper examines the history, reasons, role of political parties, and constitutional process behind the demands for creating new provinces in Pakistan.

1. Introduction and the Context of Federalism 🏛

The Core Concept: Pakistan's Asymmetric Federalism

The paper's central argument is that Pakistan's federal system is **asymmetric**, meaning the federating units are not equal partners, and the distribution of power and resources is imbalanced.

- **Meaning of Federalism:** The paper begins by stating that Pakistan emerged on the world map as a **federal state**[1]. Federalism is a system where power is divided between a central government and regional governments (the provinces or federating units).
- **The Core Problem & History of Centralization:** From its inception, Pakistan's federation faced threats because the center had **monopolistic control over the resources of the provinces**, which created grievances[2]. This history of centralization meant that power remained concentrated at the center, fostering a sense of deprivation, especially in smaller provinces.
- **The 1971 Tragedy:** The most significant result of these grievances and central dominance was the secession of East Pakistan in 1971 to become Bangladesh[3]. This is considered the biggest failure in Pakistan's federal history.
- **18th Constitutional Amendment - An Incomplete Effort:** In 2010, this amendment granted **provincial autonomy** to the provinces to reduce political unrest[44]. However, the paper argues this amendment failed to satisfy the various **sub-national identities** within the provinces, such as the **Saraikis** in Punjab, **Hazaras** in KP, **Mohajirs** in Sindh, and **Pashtoons** in Balochistan[55]. The problem, therefore, shifted from being between the center and the provinces to a new conflict *within* the provinces themselves.
- **The Trigger:** The demand for new provinces, particularly in Hazara, gained momentum after the North-West Frontier Province (NWFP) was renamed **Khyber Pakhtunkhwa (KP)**[66]. This act signaled that the state could redefine provinces on linguistic and ethnic lines.

- **Impact on National Integration:** This weak federal structure has hindered the process of national integration[7]. When sub-national identities feel that their resources and rights are being dominated by larger ethnic groups within their province, the demand for a separate province becomes an expression of their lack of trust in the state's structure.

2. Demands for New Provinces 🗺️

Different ethnic and linguistic groups in every province of Pakistan are demanding their own separate administrative units[8]. The reasons are not just based on identity but are deeply rooted in a struggle for resources.

A. Demand for South Punjab Province

- **Region:** This demand is for the southern part of Punjab, comprising three divisions: **Multan, Bahawalpur, and Dera Ghazi Khan**[9]. This area constitutes 48.5% of Punjab's total area and 28.23% of its population[10].
- **Basis for Demand:** There are two main reasons for this demand:
    - **Ethnic and Cultural (Identity Politics):** The Saraiki people have their own distinct identity, language, and culture[11].
    - **Administrative and Economic (Resource-Based):** This region has been deprived of development and prosperity despite Punjab being the most prosperous province[12]. A smaller province could ensure better governance and service delivery[1313].
- **Historical Background:** Multan was a province during the Mughal era, and Bahawalpur was a princely state that was given provincial status after joining Pakistan, but it was made a division of Punjab in 1970 after the One Unit scheme was abolished[14].

B. Demand for Restoration of Bahawalpur Province

- **History:** Before merging into the West Pakistan province under the One Unit scheme in the 1950s, Bahawalpur had the status of a province[1515].
- **Separate Movement:** A movement for its restoration has been active since 1970[16]. The people of Bahawalpur prefer their own separate province rather than being part of a proposed South Punjab or Saraikistan province[17].

- **Ethnic Context:** Although Saraikis are in the majority in this region, there is also a significant Punjabi population, which is why the demand for a Saraiki province on an ethnic basis does not have universal support here[18181818].

C. Demand for Hazara Province (KP)

- **Region:** It consists of 6 districts of KP: Haripur, Abbottabad, Mansehra, Batgram, Kohistan, and Torghar[19]. 87% of the population here is Hazarawal, speaking the **Hindko** language[20202020].
- **Basis for Demand:** The demand intensified when the NWFP was renamed **Khyber Pakhtunkhwa** under the 18th amendment[21]. The people of Hazara felt this name only represented the Pashtoon identity and ignored their Hindko identity[22].

D. Demand for Mohajir Province (Sindh)

- **Region:** This demand is for the urban areas of Sindh, particularly **Karachi and Hyderabad**[23].
- **Basis for Demand:** The **Urdu-speaking Mohajirs**, who migrated from India in 1947, initially took pride in their Pakistani national identity[24]. However, after the introduction of the **rural-urban quota system** in Sindh in the 1970s, their representation in government jobs began to decrease, leading them to assert their Mohajir identity more strongly[25].
- **Political Representation:** The **Mohajir Qaumi Movement (MQM)** was formed in the 1980s, which later became the sole representative of these areas and demanded a separate province[26262626].

E. Demand for Pashtoon Province in Northern Balochistan

- **Region:** Pashtoons are in the majority in the northern part of Balochistan, which is the largest province by area[27].
- **Basis for Demand:** When demands for new provinces arose in other parts of the country, the Pashtoons of Balochistan also started demanding a separate province for their community, which was named **"Afghania"**[28282828].

3. Role of Mainstream Political Parties 🗳️

The paper clearly states that political parties use the issue of new provinces not on principle but for their own political gain.

- **PPP / PML-Q:**
    - The PPP supported the creation of a Saraiki province, and Prime Minister **Yousuf Raza Gilani** (who hailed from the Saraiki belt) advocated for it[29].
    - According to the paper, this move by PPP and PML-Q was also a "political stunt" to weaken the vote bank of PML-N in Punjab, especially in the south[30].
- **MQM (Strategic Gameplay):**
    - The MQM submitted a bill in the National Assembly to create Hazara and South Punjab provinces[31].
    - Their underlying objective was to set a **precedent** so that they could demand the division of Sindh to create a **Mohajir province** for themselves[32].
- **PML-N / ANP (Counter-Strategy):**
    - PML-N and ANP opposed the creation of new provinces, especially the Hazara province[33].
    - In response to the PPP, the PML-N-led Punjab Assembly passed two separate resolutions: one for a **South Punjab province** and another for the **restoration of Bahawalpur province**[34]. This was seen as a tactic to weaken and divide the Saraiki movement[35].
- **PTI (The Unfulfilled Promise):**
    - PTI won seats in the 2018 elections from South Punjab by promising to create a new province[36].
    - They took a first step by establishing a **South Punjab Civil Secretariat**[37].
    - However, they were criticized for using "delaying tactics" and for not granting the secretariat full administrative and financial powers[38].

4. Constitutional Procedure for Creating New Provinces 📜

This section clarifies the practical federal aspect that prevents political promises from becoming reality.

- **Constitutional Article (The Deadlock): Article 239 (Clause 4)** of the 1973 Constitution of Pakistan outlines the procedure for creating a new province or altering the boundaries of an existing one[393939].
- **The Process:** It is a difficult process[40]. It requires that:
    - A bill to create a new province or alter boundaries must first be passed by the concerned **Provincial Assembly** with a **two-thirds majority**[41].
    - Only after that can the bill be presented in Parliament and sent to the President for approval[42].

- **The Roadblock (Lack of Political Will):** This process is often halted due to political disagreements[4343]. No province, especially Punjab, would easily agree to its own division as it would diminish its share of resources and importance in national politics. For instance, resolutions were passed and a commission was formed in 2012, but the matter did not proceed, highlighting the political deadlock on this issue[44444444].

5. Conclusion 🏁

- **Political Tug of War:** The issue of new provinces has become a "tug of war" among political parties[45].
- **Two Different Views:**
    - **Supporters:** They believe that creating new provinces will empower smaller ethnic identities, lead to administrative convenience, and improve governance[464646].
    - **Opponents:** They fear it would open a "Pandora's box" regarding political representation and resource distribution, creating new challenges for the federation[47].
- **Paper's Recommendation:** To resolve this issue, a consensus is needed among all stakeholders, including political parties and the military establishment[48]. A commission should be formed to devise a rational mechanism for the proper creation of a South Punjab province and to ensure the equitable distribution of resources[49]. This would not only improve the lives of the regional population but also strengthen democracy[50].

Detailed Conceptual Analysis

Federal List and Concurrent List ⚖️

These concepts are not directly discussed in the provided files. Federal and Concurrent lists are schedules in a constitution that specify which subjects the central government can legislate on (Federal List), and on which both central and provincial governments can legislate (Concurrent List). Through the 18th amendment, the Concurrent List was abolished in Pakistan, and those subjects were devolved to the provinces, strengthening provincial autonomy. While the files mention the 18th amendment, they do not detail these lists.

Unitary System (Wahdani Nizam) 🏛️

The term **Unitary System** is not used directly, but the concept is present in Pakistan's historical context. A unitary system is one where all powers reside with the central government, and provinces are mere administrative units.

- **Over-Centralized System:** According to the file, even after 1971, Pakistan remained an **"over-centralized system"**[51].
- **Center's Control:** The federation has always been threatened by the **"monopolistic control of the center over the resources of the federating units"**[52]. This situation resembles a unitary system where real power lies with the center.
- **One Unit Scheme:** Historically, the **One Unit Scheme** of the 1950s is a prime example, where all provinces of West Pakistan were merged into a single unit[53535353]. This was a unitary step completely against the spirit of federalism.

Benefits of Federalism (Wafaqiyat ke Fawaid) ☑️

The benefits of federalism are discussed in the context of new provinces and local government.

- **Better Governance and Service Delivery:** The creation of new provinces would lead to **"administrative convenience"** and improved **"governance and service delivery"**[5454].
- **Empowerment of Small Identities:** New provinces would lead to the **"empowerment"** of small ethnic identities in their respective regions[55].
- **Strengthening Democracy:** The creation of new provinces would eliminate economic and political disparities and **strengthen democracy**[56].
- **Equitable Resource Distribution:** A strong local government (a key component of federalism) is imperative for the **"appropriate allocation of resources"** and improved service delivery[57].

Good Governance (Behtar Hukmarani) 📈

The concept of good governance appears repeatedly, mostly in the context of its absence.

- **Weak Governance:** A major obstacle to Pakistan's economic growth is **"weak governance,"** which discourages investment[58].
- **Corruption and Inefficiency:** Bureaucratic inefficiencies and corruption create an unfavorable business environment[59]. The solution requires **anti-corruption measures** and **transparent business environments**[60].

- **Purpose of Local Governance:** Good local governance is not just about providing services but also about achieving a **"true participatory, liberal democracy"** that encourages civic dialogue[61].
- **State Capacity:** A successful state must have the **"capacity to 'discipline' business interests"**[62].

Identity Federalism vs. Efficiency Federalism (Shanakhti vs. Intezaami Federalism) 🎭⚙️

These are two critical concepts driving the demand for new provinces.

- **Identity Federalism:** This means federal units (provinces) are created based on ethnic, linguistic, or cultural identity.
    - Saraiki, Hazara (Hindko-speaking), Mohajir (Urdu-speaking), and Pashtoon groups are demanding new provinces based on their distinct **ethnic identities**[63636363].
    - The renaming of NWFP to **Khyber Pakhtunkhwa** is the most significant example, as it was based on an ethnic identity (Pashtoon)[64646464].
- **Efficiency Federalism:** This means provinces are created for administrative ease, better governance, and economic development, rather than on the basis of identity.
    - The demand for South Punjab is also made on the grounds that distance from Lahore impedes problem-solving and a smaller province could improve **"governance and service delivery"**[65656565].
    - PTI's establishment of the **South Punjab Civil Secretariat** was presented as an administrative solution to this issue[66].

Local Government Structure: The Executive Arm of Federalism 🏛️

Local Government (LG) is the third tier of the federal structure, responsible for grassroots governance. It is **not a legislative body** like the National or Provincial Assemblies; its members do not create laws for the country or province. Instead, it is an **executive body** focused on the delivery of municipal services and implementation of development plans at the local level. Its members are different from MNAs and MPAs, who are legislators.

- **Union Council/Committee:** This is the lowest and most basic tier[67676767]. It is composed of directly elected members, including a Chairman, a Vice-Chairman, general members from different wards, and members for reserved seats (women, peasants, workers, and minorities)[68]. This is the body closest to the people.

- **Tehsil/Town Council:** This is the middle tier, which typically includes the heads (e.g., Naib Nazims or Vice-Chairmen) of all the Union Councils within that Tehsil or Town[69696969].
- **District Council/Metropolitan Corporation:** This is the highest tier of local government[70707070]. Its members are often the chairmen (e.g., Nazims) of all the Union Councils within the district. It oversees the functions of the entire district, coordinates with provincial departments, and approves larger local development schemes.
- **Role of the Mayor (Supervisory Head):** The **Mayor** is the elected head of a major urban local government, like a Metropolitan or Municipal Corporation[71]. The Mayor's role is primarily supervisory. For instance, in Sindh, the Mayor has the power to **"exercise supervision over the acts and proceedings of all servants of the Council"** and has **"direct control"** over the Chief Executives (like Municipal Commissioners)[72]. Mayors also play a key role in higher-level **Divisional Coordination Committees** (in Balochistan) or consultative meetings (in Punjab and Sindh) to review and sanction development schemes[73737373].

Local Government and Bureaucracy 🤵

The relationship between local government and the bureaucracy has always been a point of contention in Pakistan's federal structure.

- **Historical Context:**
    - **British Era:** The British controlled local bodies through the **Deputy Commissioner**, making the bureaucracy all-powerful[74].
    - **Ayub Khan (1959):** The bureaucracy's control was maintained under the Basic Democracies system, with officials acting as chairmen of higher tiers[75757575].
    - **Zia-ul-Haq (1979):** In this era, the role of bureaucracy was weakened, and power was given to elected representatives who elected their own chairmen[76].
    - **Pervez Musharraf (2001):** This was the most significant change. The post of Deputy Commissioner was replaced by the **District Coordination Officer (DCO),** who was accountable to the elected **District Nazim**[77]. This, for the first time, subordinated the bureaucracy to elected representatives.
- **Current Situation (Post-18th Amendment):**

- **Resurgence of Bureaucracy:** The 2013 LG Acts (especially in Punjab and Sindh) have given significant powers back to the bureaucracy.
- **Control in Punjab:** In Punjab, the **Chief Officer** is designated as the Principal Accounting Officer, and the provincial government has wide-ranging powers to issue binding directions to the LG[78]. All service matters of employees are handled by the **Punjab Local Government Board**, which is appointed by the provincial government[79].
- **The KPK Difference:** In contrast, the KPK act gives more administrative authority to the elected **Nazimeen**[80].
- **Role of the 18th Amendment:** Article 140A makes it mandatory for provinces to establish an LG system and devolve **political, administrative and financial responsibility**[81]. However, in practice, the bureaucracy often acts as a hurdle in this devolution of power.